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CASE #	CASE NAME	HEARING NAME
CVRI2501931	GUTIERREZ VS CONTRERAS	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2502132	CENTERPOINT PROPERTIES TRUST VS VOGUEBAY, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The Court GRANTS the motion and awards the full \$14,596.57 in fees and costs.

On 4/25/2025, Plaintiff filed its Complaint. It asserts two causes of action for the following: (1) Breach of Contract against Voguebay; and (2) Breach of Contract against Meadows. On 7/9/2025, default was entered against Voguebay. On 6/9/2026, the court granted Meadows' motion for summary judgment on the grounds of collateral estoppel.

Now, Meadows moves for attorneys' fees and costs in a total amount of \$14,596.57. Meadows argues he is the prevailing party pursuant to Civil Code § 1717 and that the reciprocity provision of subdivision (a) which states the prevailing party on a contract shall be entitled to attorneys' fees and costs "...whether he or she is the party specified in the contract or not...." Meadows provides support for the amount sought.

In opposition, Plaintiff argues that the reciprocity clause does not apply because the court's ruling in the UD Action before this action was filed "conclusively established" that Plaintiff could not have prevailed on the contract and therefore, the reciprocity aspect of Civil Code § 1717 does not apply because Plaintiff could not have recovered fees.

In reply, Meadows argues Plaintiff essentially admits to filing a fraudulent lawsuit by admitting it could not prevail as the landlord per the UD Action ruling before Plaintiff filed this action. Meadows argues that nevertheless, if Plaintiff had prevailed on this case, it would have been entitled to attorneys' fees and that is the only applicable standard for whether Civil Code § 1717 reciprocity applies.

ANALYSIS

CCP § 1032(b) provides: “Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” Attorney fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) Civil Code § 1717 governs the award of attorney fees based upon a contract and authorizes an award of attorney fees to a prevailing party if the contract provides for an award of attorney fees. (Civ. Code § 1717(a).) The prevailing party is “the party who recovered a greater relief in the action on the contract.” (Civ. Code § 1717(b)(1).)

“California courts liberally construe the term “on a contract” as used within section 1717 [of the Civil Code]. As long as the action ‘involve[s] a contract it is “on [the] contract” within the meaning of section 1717.” (*Dell Merk, Inc. v. Franzia* (2005) 132 Cal.App.4th 443, 455.) Breach of express warranty claims and claims based on the breach obligations implied in contract matters constitute actions on a contract, which are within the scope of section 1717. (*Reyes v. Beneficial State Bank* (2022) 76 Cal. App.5th 596, 619; *Hjelm v. Prometheus Real Estate Group, Inc.* (2016) 3 Cal.App.5th 1155, 1168.) There is no dispute that Meadows is the prevailing party and no dispute that the second cause of action against Meadows is an express claim for breach of written contract and therefore within the scope of section 1717.

Plaintiff’s only argument is challenging the reciprocity provision of Civil Code § 1717. It is now settled that a party is entitled to attorney fees under section 1717 “even when the party prevails on grounds the contract is inapplicable, invalid, unenforceable or nonexistent, if the other party would have been entitled to attorney’s fees had it prevailed. [citations omitted.]” (*Hsu v. Abbata* (1995) 9 Cal.4th 863, 870.) The language of the statute mandating reciprocity of contractual attorney fees provisions is mandatory, unavoidable, and emphatic, and represents a basic and fundamental policy choice by the state of California that nonreciprocal attorney’s fees contractual provisions create reciprocal rights to such fees. (*ABF Capital Corp. v. Grove Properties Co.* (2005) 126 Cal.App.4th 204, 217.)

The attorney fee reciprocity statute must be interpreted to provide a reciprocal remedy for a nonsignatory defendant, sued on a contract as if he or she were a party to it, when a plaintiff would clearly be entitled to attorney fees should the plaintiff prevail in enforcing the contractual obligation against the defendant. (*Loduca v. Polyzos* (2007) 153 Cal.App.4th 334, 341.)

Plaintiff argues that Meadows is trying to apply the reverse situation – that is, enforce the reciprocity statute against a nonsignatory plaintiff. The UD Action determined there was no assignment and therefore, Plaintiff is not a party to the contract. Plaintiff asserts Meadows is therefore arguing that Plaintiff should be considered a third party beneficiary to Plaintiff’s detriment in terms of enforcing the attorneys’ fees clause.

This situation is similar to that seen in *Real Property Services Corp. v. City of Pasadena* (1994) 25 Cal.App.4th 375, 382 (“*Real Property Services*”) where a nonsignatory plaintiff sued a signatory defendant in an action on a contract. The Court of Appeal in *Real Property Services* upheld an award of attorney fees to a signatory defendant who successfully defended a breach of contract claim brought by a plaintiff third party beneficiary. (*Id.*) In that case, a city entered into a lease agreement for the development and construction of a movie theater complex. The lease agreement included an attorney fee clause. Also in the lease, the city expressly consented to the developer subleasing the facility to Real Property Services (RPS). RPS was not a signatory to the lease. After construction faltered over financial issues, the city sought to terminate the lease, and the developer acquiesced in ending the relationship. RPS sued the city for breach of contract and for attorney fees under the lease agreement between the city and the developer. After the trial court granted judgment in the city's favor, the city moved for attorney fees against RPS. (*Real Property Services, supra*, 25 Cal.App.4th at pp. 377–378.)

The Court of Appeal upheld the award of fees to the city. It applied the reciprocity test and determined RPS could have recovered attorney fees under the city's contract with the developer as a third party beneficiary had it won its claim. Under established law, RPS was a third party beneficiary because the lessor had expressly agreed to a sublease. Thus, the Court ruled, “[w]here there is a sufficient nexus between the lessor and the sublessee, a nonsignatory sublessee is entitled to enforce an attorney fee provision in the lease as a third party beneficiary against a signatory landlord.” (*Real Property Services, supra*, 25 Cal.App.4th at p. 383.)

Here, as alleged in the complaint, there is an assignment between York and Plaintiff. While the UD Action ultimately decided the assignment was not enforceable, on the allegations there is the hypothetical and alleged possibility that had Plaintiff prevailed against Meadows, Plaintiff would have been entitled to attorneys’ fees. Plaintiff’s argument that the UD Action precluded this fact prior to filing this lawsuit does not cut in its favor. To deny Meadow’s attorneys’ fees on the basis that Plaintiff could not prevail because Plaintiff knew it could not prevail before filing this lawsuit would be entirely antithetical to the purpose of Civil Code § 1717. “The statute would fall short of this goal of full mutuality of remedy if its benefits were denied to parties who defeat contract claims by proving that they were not parties to the alleged contract or that it was never formed.” (*Hsu, supra*, 9 Cal.4th at 870.) Meadows is entitled to attorneys’ fees under Civil Code § 1717.

The Court therefore turns to the reasonableness of the fees sought by Meadows. The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case

and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).)

Here, Meadows seeks a total of \$14,596.57 in fees and costs, with an hourly rate of \$275/ hour. Meadows' attorney, Mr. Lockwood, provides the invoices for each month and the amounts represent the actual amounts paid, with the exception of one pre-bill yet to be sent and some unbilled work related to this motion. (See Declaration of Christopher Lockwood, ¶¶ 3-8, Exhibits 1 and 2.) The hourly rate is reasonable. The billing entries themselves appear reasonable and commensurate with the tasks performed, as do the costs. Plaintiff makes no argument challenging the reasonableness of the fees sought. The Court GRANTS the motion and awards the full \$14,596.57 in fees and costs.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2502330	MCGIVERIN VS G.I. TRUCKING COMPANY	MOTION PRO HAC VICE APPLICATION AS TO G.I. TRUCKING COMPANY, ESTES EXPRESS LINES

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.